



Second Filing of a Previously Filed Document

Company Name: **ALPHA FMC MIDCO 2 LIMITED**

Company Number: **09963816**



Received for filing in Electronic Format on the: **04/02/2021**

X9XN3MSA

Description of the original document

Document type: **Return of Allotment of Shares
SH01**

*Date of registration of
original document:* **19/02/2016**

**Return of Allotment of Shares**Company Name: **ALPHA FMC MIDCO 2 LIMITED**Company Number: **09963816**Received for filing in Electronic Format on the: **04/02/2021****Shares Allotted (including bonus shares)**

Date or period during which
shares are allotted

From
03/02/2016

Class of Shares:	ORDINARY	Number allotted	19999
Currency:	GBP	Nominal value of each share	1
		Amount paid:	1
		Amount unpaid:	0

No shares allotted other than for cash

Class of Shares:	PREFERENCE	Number allotted	1322044
Currency:	GBP	Nominal value of each share	0.000005
		Amount paid:	1
		Amount unpaid:	0

Non-cash consideration

PREFERENCE SHARES - £1,322,044 SATISFIED BY WAY OF THE ISSUE OF 1,322,044 PREFERENCE SHARES OF £0.000005 EACH IN THE CAPITAL OF THE COMPANY AT A SUBSCRIPTION PRICE OF £1.00 EACH AS CONSIDERATION PAYABLE BY THE COMPANY TO THE SELLERS FOR THE ACQUISITION BY THE COMPANY OF 1,322,044 PREFERENCE SHARES OF £0.000005 EACH IN THE CAPITAL OF CAELIUS BISCO LIMITED

Statement of Capital (Share Capital)

Class of Shares:	ORDINARY	Number allotted	20000
	SHARES	Aggregate nominal value:	20000
	OF		
	GBP1		

Currency: **GBP**

Prescribed particulars

(A) ON A SHOW OF HANDS EACH MEMBER HOLDING ORDINARY SHARES HAS ONE VOTE AND ON A POLL EACH MEMBER HOLDING ORDINARY SHARES HAS ONE VOTE FOR EACH ORDINARY SHARE HELD. (B) ANY PROFITS WHICH THE DIRECTORS MAY LAWFULLY DETERMINE TO DISTRIBUTE IN RESPECT OF ANY FINANCIAL YEAR SHALL BE DISTRIBUTED AMONGST THE HOLDERS OF THE ORDINARY SHARES PRO RATA AND PARI PASSU ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD BY EACH OF THEM. (C) THE ORDINARY SHARES HAVE THE RIGHT, AS RESPECTS CAPITAL, TO PARTICIPATE IN A DISTRIBUTION (INCLUDING ON WINDING UP) AND SHALL BE DISTRIBUTED AMONGST THE ORDINARY SHAREHOLDERS PRO RATA ACCORDING TO THE NUMBER OF ORDINARY SHARES HELD, SUBJECT TO THE PROVISIONS IN RESPECT OF PREFERENCE SHARES NOTED IN THE COMPANY'S ARTICLES OF ASSOCIATION. (D) THE ORDINARY SHARES MAY BE ISSUED ON THE TERMS THAT THEY ARE, OR AT THE OPTION OF THE COMPANY OR THE HOLDER ARE LIABLE, TO BE REDEEMED AND THE COMPANY'S BOARD (SUBJECT TO THE TERMS OF THE INVESTMENT AGREEMENT AND THE FACILITY DOCUMENTS (EACH AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION)) SHALL BE AUTHORISED TO DETERMINE THE TERMS, CONDITIONS AND MANNER OF REDEMPTION OF SUCH SHARES.

Class of Shares:	PREFERENCE	Number allotted	1322044
	SHARE	Aggregate nominal value:	6.61022
	OF		
	GBP0.000005		

Currency: **GBP**

Prescribed particulars

(A) PREFERENCE SHARES SHALL NOT ENTITLE THE HOLDER THEREOF TO ATTEND OR VOTE AT ANY GENERAL MEETING OF THE COMPANY. (B) NO DIVIDEND MAY BE PAID IN RESPECT OF ANY PREFERENCE SHARE. (C) IN A WINDING-UP OF THE COMPANY

FROM THE ASSETS OF THE COMPANY AVAILABLE TO THE HOLDERS OF SHARES THE HOLDERS OF PREFERENCE SHARES (IN RESPECT OF THEIR PREFERENCE SHARES ONLY) SHALL RECEIVE IN PRIORITY TO ANY PAYMENT IN RESPECT OF ANY OTHER SHARE AN AMOUNT PER PREFERENCE SHARE EQUAL TO (I) GBP1 (THE "PRINCIPAL VALUE") PLUS (II) A SUM EQUAL TO 8% PER ANNUM WHICH SHALL BE DEEMED TO ACCRUE ON THE OUTSTANDING VALUE (AS DEFINED BELOW) FROM DAY TO DAY ON THE BASIS OF A 365 DAY YEAR(OR A 366 DAY YEAR IN THE CASE OF A LEAP YEAR) FROM THE DATE OF ISSUE OF THE PREFERENCE SHARE UNTIL THE EARLIEST OF (AND INCLUDING) THE DATE OF REDEMPTION OF THE RELEVANT PREFERENCE SHARE AND THE DATE OF WINDING-UP OF THE COMPANY. THE PREMIUM (AS DEFINED BELOW) (IF ANY) WHICH HAS ACCRUED AS AT EACH ANNIVERSARY OF THE DATE OF ADOPTION OF THE COMPANY'S ARTICLES OF ASSOCIATION WILL BE COMPOUNDED WITH THE PRINCIPAL VALUE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) OUTSTANDING AS AT SUCH ANNIVERSARY (AND SUCH PRINCIPAL VALUE PLUS ANY SUCH COMPOUNDED SUMS FROM TIME TO TIME SHALL BE THE "OUTSTANDING VALUE"). THE TOTAL SUM CALCULATED UNDER (II) (INCLUDING ANY COMPOUNDED SUMS (BUT EXCLUDING THE PRINCIPAL VALUE)) SHALL BE DEEMED TO BE THE "PREMIUM" FOR THE PURPOSE OF THE COMPANY'S ARTICLES OF ASSOCIATION. UPON PAYMENT OF THE AMOUNTS REFERRED TO IN ARTICLE 7.2.2 (A) OF THE COMPANY'S ARTICLES OF ASSOCIATION THE PREFERENCE SHARES SHALL NOT BE ENTITLED TO ANY FURTHER AMOUNT OF CAPITAL OR DISTRIBUTION. IF THE ASSETS OF THE COMPANY AVAILABLE TO SHAREHOLDERS ARE LESS THAN THE AMOUNT WHICH WOULD BE DUE TO ALL PREFERENCE SHARES UNDER THE FOREGOING PROVISIONS OF ARTICLE 7.2.2 (A) OF THE COMPANY'S ARTICLES OF ASSOCIATION (THE "PREFERENCE PROCEEDS"), THOSE PREFERENCE PROCEEDS WILL BE DISTRIBUTED AMONGST THE PREFERENCE SHAREHOLDERS PRO RATA BY REFERENCE TO THE NUMBER OF PREFERENCE SHARES HELD. IN THE EVENT OF A SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION), THE HOLDERS OF PREFERENCE SHARES (IN RESPECT OF THEIR PREFERENCE SHARES ONLY) SHALL RECEIVE FROM THE PROCEEDS OF THE SALE AVAILABLE IN RESPECT OF THE SHARES BEING SOLD IN PRIORITY TO ANY OTHER SHARE AN AMOUNT PER PREFERENCE SHARE EQUAL TO THE PRINCIPAL VALUE PLUS THE PREMIUM (TO BE CALCULATED UP TO (AND INCLUDING) THE DATE OF COMPLETION OF SALE) AND SHALL NOT BE ENTITLED TO ANY FURTHER PARTICIPATION IN THE PROCEEDS OF THE SALE. IF THE PROCEEDS OF THE SALE OR DRAG SALE (AS DEFINED IN THE COMPANY'S ARTICLES OF ASSOCIATION) AVAILABLE IN RESPECT OF THE SHARE BEING SOLD ARE LESS THAN THE AMOUNT WHICH WOULD BE DUE TO ALL PREFERENCE SHARES UNDER THE FOREGOING PROVISIONS OF ARTICLE 7.2.2(B)

OF THE COMPANY'S ARTICLES OF ASSOCIATION (THE "PREFERENCE PROCEEDS"), THOSE PREFERENCE PROCEEDS WILL BE DISTRIBUTED AMONGST THE PREFERENCE SHAREHOLDERS PRO RATA BY REFERENCE TO THE NUMBER OF PREFERENCE SHARES HELD. (C) AS BETWEEN THE HOLDERS OF PREFERENCE SHARES, THE ASSETS OR PROCEEDS DUE TO THEM UNDER ARTICLE 7.2.2 (A) OR (B) OF THE COMPANY'S ARTICLES OF ASSOCIATION (AS THE CASE MAY BE) SHALL BE ALLOCATED ACROSS ALL OF THE PREFERENCE SHARES PARI PASSU AND PRO RATA TO THE NUMBER OF PREFERENCE SHARES HELD BY EACH HOLDER. (SEE CONTINUATION PAGE)

Statement of Capital (Totals)

Currency:	GBP	Total number of shares:	1342044
		Total aggregate nominal value:	20006.61022
		Total aggregate amount unpaid:	0

Authorisation

Authenticated

This form was authorised by one of the following:

Director, Secretary, Person Authorised, Administrator, Administrative Receiver, Receiver, Receiver Manager, CIC Manager.